

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NATIYA SURIYA NAMESNY,

Petitioner

VS.

MARKUS JAN NAMESNY,

Respondent

) Case Number: FDI-23-797463

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Natiya Suriya Namesny (Mother) and Markus Jan Namesny (Father) have one minor child together, Charlotte (Charlie) (DOB 9/16/2019, age 6). Pursuant to the terms of a Marital Settlement Agreement of 12/29/2023, the parties have joint legal and joint physical custody of Charlie.
- 2) At a 4/28/2026 parenting time hearing, the Court issued various orders and set a review hearing for 5/19/2026 to address the summer schedule, specifically vacation and international travel.
- 3) On 5/11/2026, both parties filed update declarations. Father states he would like the parties to continue the regular parenting time schedule during the summer, with each party to have two, one-week vacations with Charlie, from Sunday to Sunday. He sets forth a proposed process for the parties to select their vacation dates as well as a proposal for the parties to provide each other with travel itineraries for all travel. He seeks an order prohibiting the parties from obtaining non-USA citizenship or a passport for Charlie without written consent of the other party. He expresses concern about Mother traveling internationally with Charlie this year, noting that Mother recently

1 told him, “ ‘If you are forcing six days on me, I’m not going to be able to live in California!’ ”
2 which Father interpreted as an indication that Mother would leave the state if the current schedule
3 remained in place.

- 4 4) Mother states in her declaration that she has no plans of leaving California, which is her home,
5 and that there is no risk that she will not return if permitted to travel to Thailand with Charlie. She
6 seeks a 14-day consecutive trip for each party during the summer and states that without 14
7 consecutive days, she would not be able to take Charlie to Thailand, where the maternal relatives
8 live. She states the maternal grandparents do not have the means to travel to the United States to
9 see Charlie, nor is there any space for them to stay in Mother’s home even if they were able to
10 come to California. Mother also requests “clarification” of the Court’s prior order, which states
11 that she has parenting time for 4 overnights, followed by Father’s parenting time of 6 overnights.
12 She states that Father’s parenting time is actually 6 days and 7 overnights.

13 **B. Findings and Orders**

- 14 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
15 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
16 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
17 child is the United States.
- 18 2) The Court finds it is in the best interest of Charlie to maintain joint legal custody to the parties
19 and the current parenting time schedule that was put in place at the 4/28/2026 hearing, as
20 memorialized in the Findings and Order After Hearing (FOAH) filed 5/4/2026. If Father’s
21 custodial time is actually 6 days and 7 overnights as opposed to 6 overnights (i.e., if it is 7
22 overnights because his first of 7 nights occurs on the night that starts at the 7pm custody
23 exchange), the parties shall submit a proposed amended FOAH to this Court. Otherwise, the
24 5/4/2026 FOAH shall remain in place.
- 25 3) The parties shall continue to follow the regular parenting time schedule during the summer. In
26 addition, each party shall be entitled to two, one-week vacations with Charlie during the summer,
27 with Father selecting his vacation weeks first, by January 31, in odd years, and Mother selecting
28 her vacation weeks second, by March 15, in odd years. In even years, Mother shall select her
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vacation weeks first, by January 31, and Father shall select his vacation weeks second, by March 15.

- 4) For all travel with Charlie, each party shall provide the other party, at least 15 days before the first travel date (unless the parties agree in writing to a shorter notice period), travel information, i.e., basic itinerary, any flight information, confirmation of a return flight if traveling by air, addresses of all accommodations, and contact information for the duration of the trip.
- 5) Neither party may travel internationally without the written consent of the other party. Requests for international travel shall be made at least 60 days prior to any travel unless the parties agree otherwise in writing to a shorter period. Mother's requests to travel with Charlie to Thailand this year, and for the parties to have 14-day consecutive vacations with Charlie over the summer break, are denied, without prejudice to the Court revisiting these requests in future years.
- 6) All other orders not in conflict with these orders shall remain in full force and effect.
- 7) Mother's attorney shall prepare the Findings and Order After Hearing.
- 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).